WILLOW

Willow Member Terms

07042002 Inc. d/b/a Willow · Version of November 13, 2026

> **How to read these terms:** Each section opens with a short summary in a box like this one. The summaries are for convenience only and are not part of these terms. Section 9 contains an agreement to resolve disputes by individual arbitration and a class action waiver, which affect your legal rights. You may opt out as described there.

These Member Terms (the "**Terms**") are an agreement between you and 07042002 Inc., a Delaware corporation doing business as Willow ("**Willow**," "**we**," "**us**" or "**our**"). They govern your use of the Willow platform and related services (the "**Services**") as a Member.

Acceptance. You accept these Terms by checking the box or clicking to agree when you create your account, or when you are asked to accept an updated version. Your acceptance is an electronic signature under federal and state law. We keep a record of the version you accepted and when.

Consent to handle sensitive information. Estate planning documents and the supporting information in a Member Account often contain sensitive personal information, such as health information, government identification numbers and financial account details, about you and about the people named in your documents. When you create your account, we ask you to consent separately to Willow handling this kind of information in order to provide the Services, as described in the Privacy Policy. That consent is separate from your acceptance of these Terms. You can withdraw it at any time by emailing support@willow-inc.com. Because we cannot keep your estate plan without this information, withdrawing it altogether means closing your account (Section 10.2); the Privacy Policy explains how this works and what we keep.

Eligibility. You may use the Services only if you are at least 18 years old, can form a binding contract, and reside in a U.S. state where Willow makes the Services available, as listed on our website (our "**availability page**"). If you are accepting on behalf of another person, such as under a power of attorney, you confirm that you have the authority to do so.

Related documents. Our Privacy Policy explains how we handle personal information. Your sharing choices are made in your Access Instructions (Section 4). Some optional features have additional Feature Terms, which you accept when you turn the feature on. If your attorney's law firm uses Willow, the firm has its own agreement with us, but your rights as a Member are set out in these Terms.

1. Definitions

> **Summary:** These words mean the same thing here as in Willow's agreement with law firms and in the Privacy Policy.

1.1 "**Access Instructions**" means your choices, made through the sharing tools in the Services, about which of your documents and Sections (Section 4.1) may be seen by which people, and when.

1.2 "**Attorney**" means a licensed attorney at a Firm who is connected to your Member Account.

1.3 "**Designated Recipient**" means a person you choose to share documents or information with through the Services.

1.4 "**Fiduciary**" means an executor, personal representative or administrator of an estate; a trustee or successor trustee; an agent under a power of attorney; a health care agent, proxy or surrogate; a guardian or conservator; and any other person whom Willow reasonably determines holds a similar legal role for a Member or a Member's estate.

1.5 "**Firm**" means a law firm that uses Willow to work with its clients.

1.6 "**Member**" or "**you**" means an individual who holds a Willow account for their own estate planning (a "**Member Account**"), whether or not any documents have been added to it yet. For a couples Plan, each person is a Member with their own rights under these Terms.

1.7 "**Plan**" means the paid Willow plan for your Member Account, which you buy from Willow in the Services.

1.8 "**Recipient Terms**" means the short terms that Designated Recipients and Fiduciaries accept when they first access documents through the Services.

1.9 "**Your Content**" means the documents, files, information and instructions you upload to or create in your Member Account, and the documents, summaries and information your Firm uploads to it or creates in it and makes available to you (Section 3.1).

2. Your Account and Your Attorney

> **Summary:** Keep your login safe. Willow is a software service, not your lawyer. If your account is connected to an attorney, legal advice comes from them, and any AI summary you see has been approved by them first. You can end the connection with your attorney at any time, and your documents and sharing choices stay in place.

2.1 **Your account.** You must give accurate information and keep it up to date. You are responsible for keeping your password and multi-factor authentication secure and for activity under your account, except activity caused by Willow's failure to maintain reasonable security. Tell us promptly through the contact options on our website if you suspect unauthorized access. We may suspend access to an account we reasonably believe has been compromised, and will work with you to restore it.

2.2 **Couples Plans.** A couples Plan covers two people whose Attorney has linked their Member Accounts as a couple. Only an Attorney can link two accounts, and whether to do so is up to the Attorney, for example for spouses or partners who plan together. One couples Plan fee covers both of you. Each of you has your own Member Account, your own documents and your own

Access Instructions. Linking does not by itself share your documents or information between you: each of you can see the other's name, email address and whether they are connected to a Firm, and otherwise sees only what the other chooses to share. A document your Attorney identifies as joint, such as a joint trust, is placed in both of your accounts, and each of you controls your own copy and your own sharing of it. The link stays in place if either of you ends the connection with the Firm (Section 2.6). While either of you is connected to a Firm, the Attorney manages the link, and you ask the Attorney to unlink; once neither of you is connected to a Firm, either of you may unlink. After an unlinking, the couples Plan covers both of you until the end of the period already paid for. The person who pays for the Plan then renews on an individual Plan, at the price stated in the renewal reminder, and the other person may buy their own Plan; if they do not, Section 6.7 applies to them when the paid period ends. To protect each of you, Willow or your Attorney may contact either of you individually, for example to confirm a change or a sharing choice.

2.3 **Willow is not a law firm.** Willow is not a law firm, does not practice law and does not give legal advice. No attorney-client relationship forms between you and Willow. Using the Services, booking a consultation or sending a message through a Firm's booking page does not by itself create an attorney-client relationship with any attorney. That relationship forms only when you and the attorney agree to it. Please do not include confidential details of your legal matter in a booking request.

2.4 **Your Attorney.** If your Member Account is connected to a Firm, the Firm's Attorneys and staff can see your whole Member Account, including your documents, your answers to check-ins and surveys, and your account activity, to provide legal services to you, except files you upload yourself and personal contacts you have not chosen to share with the Firm. You can be connected to one Firm at a time. If you later accept a new Firm's request to connect, that Firm sees your whole Member Account, including documents and summaries from an earlier Firm; accepting the request is your direction to us to show it to them. Your replies and check-in answers reach only a Firm you are still connected to. Your relationship with your Attorney, including any fees you pay the Firm, is governed by your agreement with the Firm, not by these Terms. Willow is not responsible for the advice or services your Attorney provides. If your Firm uses Willow, its name, logo and contact details may appear in your Member Account; that is the Firm's content, shown on the Firm's behalf.

2.5 **AI analysis.** If your Member Account is connected to an Attorney, Willow uses artificial intelligence to analyze the documents and supporting files your Attorney uploads or manages: to classify them, identify the people and key terms in them, and prepare draft summaries for your Attorney's review. This may include setting up your client record for your Attorney, which can happen before you join Willow. You see a summary only after your Attorney has approved it, and only while you have an active Plan (Section 6.1). Summaries are not legal advice and may not capture every detail of a document. The document in your Member Account is the record that Willow and your Attorney work from: if a summary ever differs from the document, the document governs and the summary is treated as wrong. You and your Attorney are responsible for making sure that the correct, signed version of each document is in your Member Account. Willow does not check that a document is the right one, the latest one or properly signed. While no Attorney is

connected to your Member Account, Willow does not use AI to analyze the documents in it. We do not use your documents or summaries to train AI models, and our AI providers are contractually prohibited from doing so.

2.6 **Ending the connection with your Attorney.** You may end the connection between your Member Account and your Attorney or Firm at any time by asking us at support@willow-inc.com, or in any other way the Services offer. When you ask us, we will confirm the request with you and then end the connection, which we may arrange through your Firm. Your Firm may also end it by removing you as a client, for example when its work for you is finished, in which case we send you a short notice in your Attorney's name; and your Firm may stop using Willow (Section 6.8). To connect a new Firm, the connection with your current Firm has to end first. When the connection ends:

- (a) the Firm can no longer see your Member Account, including anything you add afterwards. The Firm keeps its own record of you as a former client, as attorneys are required to do: your contact details, copies of the documents in your Member Account with the summaries your Attorney approved (including any from an earlier Firm), the contact details of the people on your team and, if you shared them with the Firm, your contacts, and the messages, check-ins and surveys the Firm sent you through Willow. Willow holds that record for the Firm as part of the Firm's client file, and the Firm's own professional obligations govern how long it keeps it;
- (b) everything already in your Member Account stays there, including the documents your Attorney shared with you, which remain your own copies;
- (c) AI summaries stay as your Attorney last approved them and are not updated after the connection ends;
- (d) every share and Access Instruction you set keeps working, subject to Section 6.7 if your Plan later lapses. Release requests go to your new Attorney if you connect one, and otherwise Willow handles them under Section 5;
- (e) we notify the Firm, the Firm's emails to you through Willow stop, and the Firm's name, logo and other content are no longer shown in your Member Account; and
- (f) you may connect a different Firm, which then sees your whole Member Account (Section 2.4). If your Member Account is linked to another person's as a couple (Section 2.2), the link stays in place, and a document you held jointly with the other person becomes a separate copy in each of your accounts.

3. Your Documents

> **Summary:** Your documents are yours. Willow stores copies, not originals, so keep your signed originals safe. You can download your documents at any time while you have access to your account, with or without a Plan.

3.1 **Ownership.** As between you and Willow, you own Your Content, including documents your Firm uploads to your Member Account once your Firm has sent them to you. Documents your Firm has uploaded but not yet sent to you are the Firm's working files: they are not shown to you and are

not Your Content. You give Willow a limited license to host, copy, process, display and transmit Your Content only as needed to provide the Services to you, to follow your Access Instructions, to keep the Services secure, and to comply with law. Willow will not sell Your Content or use it for any other purpose, and these limits continue for as long as Willow holds it, including if Willow's business is transferred. Your Firm may keep its own copies of documents it uploads.

3.2 **Copies, not originals.** Willow stores copies of documents. Willow does not hold original wills, is not a will depository, does not file or deposit documents with any court, and does not certify any document as a true copy. A court, bank, hospital or other institution may require an original or a certified copy. Keep your signed originals in a safe place and note their location in your account. This Section describes the Services as offered today. If Willow later offers Signing Services (Section 3.6) or a feature for holding original or electronic documents, the Feature Terms for that feature will say what changes.

3.3 **Downloading.** You may download copies of your documents at any time while you have access to your Member Account, with or without a Plan, including while your Plan is lapsed. There is no charge to download your own documents.

3.4 **Sensitive information.** You decide what to store in Willow. We recommend that you do not store passwords, PINs, security answers, full financial account numbers, or cryptocurrency private keys or seed phrases. If you choose to store them, you do so at your own risk. Instead, you can record where accounts and keys are kept and who to contact.

3.5 **Information about others.** If you upload information about other people, such as family members, beneficiaries or Fiduciaries, you confirm that you are permitted to do so.

3.6 **Signing Services.** Willow may offer features for signing, witnessing or notarizing documents ("**Signing Services**") only in states where the law allows it, and only once our availability page says that the feature is offered in your state. Where Signing Services are offered, additional requirements apply, such as identity verification, consent to recording, and witness and notary rules, and we will show them, together with any Feature Terms, before a signing starts. Where Signing Services are not offered, documents are signed outside Willow, and Willow stores copies (Section 3.2).

4. Sharing and Access Instructions

> **Summary:** You choose who sees what, one document or section at a time. Powers of attorney and health care documents go to the agents you share them with right away. Other items can be shared right away or kept locked until your death, or until another release event if we offer more in the future. You can change your choices at any time, and they still apply after your death or incapacity.

4.1 **How sharing works.** You share each document, and each section of supporting information in your Member Account (such as financial, medical or children's information; each a "**Section**"), separately. Sharing one item does not share anything else. You need an active Plan to share

(Section 6.1). If your Plan lapses, Section 6.7 applies.

4.2 **Powers of attorney and health care documents.** When you share a power of attorney, health care proxy, health care surrogate designation, living will or similar document with a person, that person can see it right away. Because these documents are meant to be used during your lifetime, they are shared right away rather than kept locked until a release event, unless the Services later offer another option for them. Willow does not decide whether you have capacity or whether a document is in effect. The institution the agent presents it to makes that decision. If you revoke or replace a document, tell your Attorney and update your sharing (Section 4.7).

4.3 **Wills and documents released at death.** You may share a will or other document so that it stays locked until your death. The person can see that it exists but cannot open it until a release is requested and verified as described in Section 5.

4.4 **Your Access Instructions are your direction to Willow.** Your Access Instructions are given through a tool separate from your acceptance of these Terms, and you may change or delete them at any time. You agree that they are your direction to Willow about the disclosure of your documents to others, including under the law of your state on fiduciary access to digital assets, and your lawful consent to disclosure under federal law. As to records Willow holds, they apply in place of any contrary instructions in your will, trust or power of attorney. Your authorization continues after your death or incapacity.

4.5 **What recipients do.** Designated Recipients and Fiduciaries accept the Recipient Terms before accessing your documents. Willow is not responsible for what a recipient does with a document after viewing or downloading it.

4.6 **No verification of authority by Willow.** Except for the verification steps described in Section 5, Willow does not verify that a person you share with is your agent, that a document is valid or current, or that it will be accepted by any third party.

4.7 **Revoked or replaced documents.** If you revoke or replace a document, tell your Attorney and update your sharing (Section 4.1) so that the people you shared it with no longer see it, or see the current version instead. Where the Services offer a way to mark a document as revoked or no longer current, only your Attorney can use it, and the marking only tells the people you shared the document with that the document is no longer current. **MARKING A DOCUMENT AS REVOKED IN WILLOW IS NOT A LEGAL REVOCATION AND HAS NO LEGAL EFFECT ON THE DOCUMENT. A WILL, POWER OF ATTORNEY OR OTHER DOCUMENT CAN BE REVOKED ONLY IN THE WAY THE LAW REQUIRES. ASK YOUR ATTORNEY HOW TO REVOKE A DOCUMENT.**

5. Releases and Search Requests

> **Summary:** After your death, documents you set to unlock at death are released once a request is verified, by your attorney if you have one, or by Willow if you don't. If you have no attorney, Willow checks the request under its own procedures before releasing anything. If we add other release events later, they'll work the same way, and you choose whether to use them.

5.1 **Requests.** After a Member's death, a Designated Recipient, the executor named in the Member's most recent will on file, or a court-appointed Fiduciary may request release of documents, either in the Services if they already have access to a shared item, or through the request process we make available on our website. The person verifying the request (your Attorney, or Willow if no Attorney is connected) decides what proof is needed given the circumstances, which may include proof of the requester's identity and proof of the death, and the requester must provide what is asked for.

5.2 **Verification by your Attorney.** If your Member Account is connected to an Attorney, the request is sent to your Attorney. Your Attorney is responsible for verifying the request under the Attorney's own procedures, decides what proof and further steps are required, and decides whether to approve the release. Willow does not separately verify a request that your Attorney handles. The Attorney's verification is a step in Willow's release process, checking the request and the records provided against your Access Instructions. It is not legal advice to you or to the person requesting the release, and like any release it carries some risk, for example that a record provided is false or that a later will exists.

5.3 **Verification by Willow.** If no Attorney is connected, Willow verifies the request under its own procedures, which may include further verification of its choosing, a waiting period, or notice to people you have shared with. If Willow is satisfied, it releases the documents according to your Access Instructions. If Willow has reason to doubt the request, or anyone raises a concern, Willow decides what to do next based on the circumstances, and may decline or delay the release until it is satisfied. Willow will not release documents on the basis of a death if it learns that you are alive.

5.4 **Court orders and appointed Fiduciaries.** Court-issued letters testamentary, letters of administration or a court order take priority over the name of an executor in a will on file.

5.5 **Disputes.** If people disagree about who should receive a document, Willow may wait for written agreement among them or a court order, and may ask a court to decide. Willow will not be liable for any delay caused by doing so.

5.6 **Search requests.** A person with proof of a Member's death may ask Willow whether a will or other document is on file for that Member, through the request process on our website. Willow will confirm only whether a document is on file and how to request a release. If the Member Account is connected to a Firm that has agreed to be named, Willow may also give the Firm's name and contact details. A copy is released only under Sections 5.1 to 5.4.

5.7 **Fees.** Willow may charge a reasonable fee for search requests and for certain release requests, such as a release request for an account whose Plan has lapsed (Section 6.7(c)). Willow sets any such fee and may change it, and the fee is shown before the request is submitted.

5.8 **Originals and court deposit.** A released copy is not an original. Whoever holds a Member's original will remains responsible for depositing or filing it as the law requires.

5.9 **Good-faith releases.** Willow follows your Access Instructions and the process in this Section. Willow is not a Fiduciary and makes no legal determination about anyone's authority. To the fullest extent permitted by law, Willow is not liable for a release made in good faith under this Section, or for declining or delaying a release when it reasonably believes doing so is appropriate. To the

extent the law allows, the same applies to an Attorney who verifies a request in good faith under this Section. This Section does not limit any Attorney's responsibility to you for the legal advice or services the Attorney provides.

5.10 **Release events.** You can keep an item locked until your death. We may later offer other events an item can stay locked until, to give you more choice or add safeguards for you and the people you name. If we do, the Services will describe the event, who may request a release, and what proof is needed before you can choose it. Releases on those events will be verified and protected in the same way as releases after death under this Section. A new release event never applies to an item unless you choose it.

5.11 **No legal or medical determination.** Willow relies on the request and the records provided, and makes no legal or medical determination, such as whether a document is in effect or whether a person has capacity. Section 5.9 applies to every release under this Section.

5.12 **Releases made in error.** If a release was made in error, for example because a request turned out to be false or because you are alive, your Attorney may lock the item again and remove the access that was granted, and Willow may do so where no Attorney is connected. If you believe a release was made in error, contact your Attorney or Willow right away. Willow cannot take back a copy that has already been viewed or downloaded. You can also change or end your shares at any time as described in Section 4.

6. Plans, Billing and Renewal

> **Summary:** A Willow account is free. You can always see what others share with you, and view and download the documents your attorney sends you. To see your summaries, share with others or add your own documents, you buy a Plan in Willow, which is offered once an attorney is connected to your account. Your Plan lasts a year and renews automatically each year, charged to the card or other payment method you keep on file, until you cancel. We remind you 15 to 45 days before each renewal, and that reminder tells you about any price change. You can cancel at any time. If your Plan lapses, your documents stay in your account and you can still read and download them. Your existing shares keep working for 90 days; after that, only your executor and the agents named in your powers of attorney and health care documents keep their access, unless you start a new Plan. We may delete a lapsed account, but only after giving you notice.

6.1 **Your Plan.** Willow offers an individual Plan and a couples Plan (Section 2.2). Anyone can create a free Willow account. A Plan is offered to you once an Attorney is connected to your Member Account, and prices are shown in the Services when you buy. Without a Plan, you can see documents and information that others have shared with you, and you can view and download copies of the documents your Attorney sends to your Member Account. You need an active Plan to see the AI summaries your Attorney has approved, to share documents or information with anyone, to add your own documents or supporting files to your Member Account, and to use the other features shown when you buy your Plan. People you share with never pay to see what you

have shared with them. A release request (Section 5) for an account whose Plan has lapsed may carry a reasonable fee, which Willow sets and may change; any fee is shown before the request is submitted (Sections 5.7 and 6.7(c)). You pay Willow directly for your Plan, even if your account is connected to a Firm.

6.2 **Automatic renewal.** You buy your Plan in the Services with a card or other payment method, which we keep on file. Your Plan runs for one year and then renews automatically for another year, at the end of each year, until you cancel. Before you buy, we show you the price, that your Plan renews automatically each year, the renewal date and how to cancel, and you confirm your agreement by ticking a box that is not pre-ticked. We keep a record of what you agreed to, with the date, your IP address and browser. By buying, you authorize Willow to charge your payment method on file for the first year and at the start of each renewal year for the Plan price then in effect, plus any applicable taxes, until you cancel, and we confirm these terms to you by email after you buy. If a promotion code or discount applies, we show the discounted price, how long it lasts and the price your Plan renews at. We do not ask for a payment method until you choose to buy a Plan, and there is no free trial.

6.3 **Reminders and price changes.** Between 15 and 45 days before each renewal, we will email you a reminder that states the renewal date, the price you will be charged, that your Plan renews unless you cancel, and how to cancel. If the price is changing, that reminder will say so, and the new price applies only from that renewal. We will also give you any other notice of a renewal or price change that the law where you live requires.

6.4 **Cancelling.** You can cancel at any time in the Services or by emailing support@willow-inc.com. Cancelling is at least as easy as signing up. Cancelling stops future renewals; your Plan continues until the end of the year you have paid for, and we will not charge you again. If a renewal charge fails, we will email you with a way to update your payment method and try the charge again; if it is still not paid after that, your Plan lapses (Section 6.7).

6.5 **Refunds.** Fees are non-refundable, except that: (a) if your price increases and you cancel within 14 days after you are charged the new price, we will refund the unused part of that payment, pro rata; (b) if you decline a material change to these Terms and cancel under Section 10.1, we will refund the unused part of any fee you prepaid, pro rata; (c) if a second Plan is bought for the same account by mistake, we refund the duplicate; and (d) we will give any other refund that the law requires.

6.6 **Payment.** Payments are processed by our payment processor. You can update your payment method in the Services at any time. Prices exclude applicable taxes, which we will add where required.

6.7 **If your Plan lapses.** Your Plan lapses when your paid coverage ends without renewing: because you cancelled, because a renewal charge failed and was not fixed, or, after a couples unlinking, because the period you were covered for ended (Section 2.2). While your Plan is lapsed:

- (a) your documents stay in your Member Account, and you can still view and download them, but AI summaries are no longer shown. For 90 days after the lapse, your existing shares keep working. You can still stop sharing any item or remove anyone you shared it with, but until you

start a new Plan you cannot upload new documents, share anything new, or share with anyone new;

- (b) 90 days after the lapse, Willow turns off your sharing, except that a will shared with your executor, a financial power of attorney shared with the agent named in it, and health care documents shared with your health care agent remain available to them. We keep a record of the shares we turned off and email you;
- (c) release requests continue to work as described in Section 5 for items that are still shared, including after your death, and a reasonable fee, shown before the request is submitted, may apply (Section 5.7);
- (d) to restore full use, you start a new Plan, which the Services offer once an Attorney is connected to your Member Account (Section 6.1). If sharing was turned off under (b), we offer once to resume the shares you had, and the offer stays available until you make a new sharing decision. Nothing is shared again unless you accept the offer; and
- (e) Willow may delete a lapsed Member Account after giving you advance notice.

6.8 **If your Firm stops offering Willow.** If your Firm leaves Willow, you keep your Member Account, your documents and your Plan, and we will tell you in advance before we end the connection. The documents your Firm shared with you stay in your account as your own copies. Any refund of fees you paid your Firm is between you and the Firm.

6.9 **After your death.** Willow keeps a deceased Member's account for at least 24 months after the death is verified so that Fiduciaries can request documents, and then may delete it after notice to the executor of record.

7. Using Willow Responsibly

> **Summary:** Use Willow for your own estate planning, lawfully, and don't try to break or misuse it. Optional features may come with their own short terms.

7.1 **Acceptable use.** You will not: (a) use the Services in violation of law or the rights of others; (b) upload malicious code or try to access accounts or systems you are not authorized to access; (c) upload content you have no right to upload; (d) impersonate anyone or make a false release request; (e) use the AI features for anything other than your own estate planning, try to extract system instructions or bypass safeguards, or send automated or excessive requests; or (f) copy, resell or reverse engineer the Services, except as the law allows. We may apply reasonable usage limits and suspend access that threatens the Services or other users.

7.2 **Feature Terms.** Some optional features, including features we add in the future, may have additional Feature Terms. Feature Terms describe what the feature does, what information it uses and anything in these Terms that works differently for that feature. You accept them when you turn on the feature, and they apply only to that feature. If Feature Terms conflict with these Terms, the Feature Terms control for that feature.

7.3 **Connected Services.** If we let you connect a third-party application or account to Willow, your use of it is governed by that provider's terms, and Willow accesses only the data needed for the features you turn on, as described in the Privacy Policy.

7.4 **Legal process.** If we receive a subpoena, court order or other legal demand for your information, we will notify you before responding unless the law prohibits it. If you ask us to act on your behalf in response, such as by objecting to or resisting the demand, or you withhold consent to a production we would otherwise make, we may ask you to cover our reasonable costs of doing so, including but not limited to legal fees and the cost of resisting a subpoena, and we may wait for your agreement before acting. This does not apply where the demand arises from our own conduct.

7.5 **Suspension.** We may suspend or limit your access if you materially breach these Terms, if required by law, or to protect the security of the Services or other users. Where practical, we will tell you why and give you a chance to fix the problem. Suspension does not stop releases to your executor or agents under Sections 4 and 5.

8. Disclaimers and Limits on Liability

> **Summary:** Willow stores and shares copies of your documents; it can't promise that a document is valid or that a bank or hospital will accept a copy. If something goes wrong, Willow's liability is limited to what you paid in the last year, or $200 if that's more, unless the law says otherwise. Willow isn't liable for indirect losses such as lost profits. Tell us about a problem as soon as you can so that we can fix it, and bring any claim within one year.

8.1 **Disclaimers. To the fullest extent permitted by law, the Services are provided "as is" and "as available," and Willow disclaims all warranties, express or implied, including warranties of merchantability, fitness for a particular purpose and non-infringement. Willow does not warrant that: (a) any document is valid, current or effective, or that a copy will be accepted by any court, financial institution, health care provider or other third party; (b) AI summaries are accurate or complete; or (c) the Services will be uninterrupted or error-free.**

8.2 **Security.** No system is completely secure. Willow is not responsible for unauthorized access caused by the criminal acts of third parties where Willow has maintained reasonable safeguards.

8.3 **Exclusion of indirect damages. To the fullest extent permitted by law, Willow will not be liable for any indirect, incidental, special, consequential, exemplary or punitive damages, or for lost profits or data, arising out of or relating to these Terms or the Services, under any theory of liability.**

8.4 **Limit. To the fullest extent permitted by law, Willow's total liability arising out of or relating to these Terms or the Services, for all claims together and under any theory of liability, will not exceed the greater of (a) the amounts you paid Willow in the 12 months before the event giving rise to the liability, and (b) US$200. This is a single aggregate limit, and it is not increased by the number of claims, events or people affected.**

8.5 **Where the law limits these terms.** The exclusions and limits in this Section 8 apply only to the extent the law allows. Nothing in these Terms limits Willow's liability for its own fraud, gross negligence or willful misconduct, or any other liability that the law does not allow to be limited.

8.6 **Your responsibility.** You agree to be responsible for, and to reimburse Willow's reasonable losses and costs from, any third-party claim arising from content you uploaded without the right to do so or from your willful violation of these Terms.

8.7 **Basis of the bargain.** These limits reflect the price of the Services and are a basis of our agreement.

8.8 **Telling us about problems, and time to bring a claim.** To the extent the law allows: (a) you should tell Willow about a problem with the Services as soon as you reasonably can after you become aware of it, by email to support@willow-inc.com or through the contact options on our website, so that we have a chance to fix it; the longer you wait, the less we may be able to do, and we are not responsible for harm that a prompt report would have avoided; and (b) any claim arising out of or relating to these Terms or the Services must be started within one year after the claim arose, or it is permanently barred. This Section does not shorten any period that the law does not allow to be shortened.

9. Resolving Disputes: Individual Arbitration

> **Summary:** If we have a dispute, we'll first try to resolve it informally for 60 days. If that doesn't work, it goes to individual arbitration, not court, and neither of us can bring a class action. Small claims court and probate court are still available. You can opt out of arbitration within 30 days of accepting these Terms.

Please read this Section carefully. It affects your rights, including your right to go to court and to participate in a class action.

9.1 **Informal resolution first.** Before starting arbitration or a small claims case, the party with a claim must send the other a written notice describing it and the relief sought. Notices to Willow go to the email address in Section 10.6; notices to you go to your account email. The parties will try in good faith to resolve the claim for 60 days after the notice is received. All limitation periods are paused during that time.

9.2 **Agreement to arbitrate.** If the claim is not resolved, you and Willow agree that any dispute arising out of or relating to these Terms or the Services will be resolved by final and binding individual arbitration, except as stated in Section 9.4. The Federal Arbitration Act governs this Section.

9.3 **How arbitration works.** The arbitration will be administered by the American Arbitration Association ("**AAA**") under its Consumer Arbitration Rules then in effect, before a single arbitrator appointed under those rules. Hearings will take place by video or phone, or in the county where you live, as the rules provide. Fees are governed by the AAA Consumer Fee Schedule: your filing fee is capped at the amount set by that schedule, and Willow pays the remaining AAA

administrative and arbitrator fees. Each party pays its own attorneys' fees unless the arbitrator awards them under applicable law or the AAA rules. The arbitrator may award any individual relief a court could award, but only to the individual party seeking it.

9.4 **Exceptions.** Either party may: (a) bring an individual claim in small claims court if it qualifies; (b) seek an injunction in court to stop unauthorized use of the Services or infringement of intellectual property; (c) take part in any probate, estate administration, guardianship or similar court proceeding, including responding to an order to produce documents; and (d) where the law gives you a right to seek public injunctive relief that cannot be waived, seek that relief in court after the arbitrator has decided your individual claims. Those court proceedings are not subject to arbitration.

9.5 **No class actions. You and Willow may bring claims only in an individual capacity, and not as a plaintiff or class member in any class, collective or representative proceeding.** The arbitrator may not consolidate claims of different people. If a court decides that this Section 9.5 cannot be enforced as to a particular claim, that claim (and only that claim) will be decided in court, not in class arbitration. A court, not an arbitrator, decides disputes about the enforceability of this Section 9.5 and Section 9.6.

9.6 **Mass filings.** If 25 or more similar claims are filed against Willow by or with the help of the same or coordinated counsel, the claims will be administered in batches of up to 50, with each batch heard by a single arbitrator. Each claimant must sign their notice under Section 9.1 and identify their account. Limitation periods are paused for claims waiting in later batches. After the first batch is decided, the parties will mediate the remaining claims in good faith before the next batch proceeds. No decision in one batch binds any other claimant.

9.7 **Opting out.** You may opt out of this Section 9 by sending written notice, including your name and account email, within 30 days after you first accept these Terms, by email to the address in Section 10.6. Opting out does not affect any other part of these Terms.

9.8 **Court fallback.** If a claim is not subject to arbitration, it will be brought in the state or federal courts for the county where you live, and you and Willow consent to their jurisdiction.

9.9 **Governing law.** These Terms are governed by the laws of the State of Delaware, without regard to conflict-of-laws rules, except that the Federal Arbitration Act governs this Section 9, and except where the law of the state where you live requires its own consumer protection law to apply.

9.10 **Who is bound.** To the extent permitted by law, this Section 9 binds your heirs, executors, agents and successors as to claims arising from your Member Account.

9.11 **Changes to this Section.** If Willow changes this Section 9, the change will not apply to any claim of which either party gave notice before the change took effect.

10. Changes, Closing Your Account and General Terms

> **Summary:** If we make an important change to these Terms, we'll tell you at least 7 days ahead and ask you to accept it. Price changes are announced in your renewal reminder. You can close your account at any time.

10.1 **Changes to these Terms.** We may update these Terms. For a material change, we will notify you by email and in the Services at least 7 days before it takes effect, and ask you to accept it when you next sign in. If you do not accept, you may cancel, and we will refund the unused part of any fee you prepaid, pro rata. Changes to the price of your Plan are handled under Section 6.3. Other changes take effect when posted. The current version and its date will always be available on our website.

10.2 **Closing your account.** You may close your Member Account at any time by emailing support@willow-inc.com; we will confirm the request with you first. Download any documents you want to keep first. After closing, we delete your account as described in the Privacy Policy, except for copies your Firm keeps and records we must retain by law.

10.3 **If Willow stops offering the Services.** If Willow decides to stop offering the Services, we will give you reasonable advance notice and an opportunity to download your documents.

10.4 **Electronic communications.** You agree that we may send you notices, agreements and other communications electronically, by email or in the Services, and that they satisfy any requirement that they be in writing.

10.5 **Assignment.** You may not transfer these Terms without our consent. We may transfer them in connection with a merger, acquisition or sale of our business, provided the successor agrees to be bound by them.

10.6 **Notices.** Notices to Willow must be sent by email to support@willow-inc.com. Notices to you go to the email address on your account.

10.7 **General.** These Terms and any Feature Terms you accept are the entire agreement between you and Willow about the Services. The Privacy Policy explains how we handle personal information but is not part of these Terms. If any provision is unenforceable, the rest remains in effect. Our failure to enforce a provision is not a waiver. Neither party is responsible for delays caused by events beyond its reasonable control. Headings and summaries do not affect interpretation. If the law where you live gives you rights that these Terms cannot take away, those rights apply. Sections 3.1, 4.4, 5.9, 7.4, 8, 9 and 10 survive the end of these Terms.

10.8 **Contact.** Questions about these Terms can be sent to support@willow-inc.com or through the contact options on our website.

Willow (07042002 Inc.), a Delaware corporation doing business as Willow.